

Petitioner v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 10 October 2025 · WRIT - C No. 34506 of 2025 · **Writ disposed of; clause 6.8 hearing directed subject to deposit of Rs 1,50,000.**

HEADNOTE

Challenge to a recovery citation of Rs 15,24,562 for electricity dues, alleging want of hearing. Without deciding whether assessment procedure had been complied with, the High Court disposed of the writ directing that, subject to deposit of Rs 1,50,000, the Assessing Officer shall hear and decide the petitioner's objection under clause 6.8 of the U.P. Electricity Supply Code, 2005 by a speaking order after personal hearing and confrontation with adverse material; non-compliance revives recovery.

FACTUAL SUMMARY

The petitioner assailed a Recovery Citation dated 5 August 2025 issued to recover Rs 15,24,562 as electricity dues. He claimed that no opportunity of hearing had been afforded before the demand was created. The Assessing Officer impleaded was the Executive Engineer, Electricity Distribution Division, Orai, District Jalaun. The Court observed that it was not clear whether the assessment procedure had been fully complied with, and saw no purpose in keeping the writ pending or calling for a counter affidavit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

opportunity of hearing before recovery of assessment

HOLDING

Where it is unclear whether assessment procedure was complied with and the consumer alleges want of hearing before the electricity demand, the writ is disposed of with a direction that, subject to depositing Rs 1,50,000 towards the disputed demand within one month and filing an application within a further week, the Assessing Officer shall decide the objection under clause 6.8 of the U.P. Electricity Supply Code, 2005 by a reasoned speaking order after confronting the consumer with all adverse material and giving personal hearing, preferably within two months; non-compliance revives the recovery. ¶ 4-6

PRINCIPLE TAGS

opportunity-before-final-assessment Challenge to a recovery citation of Rs 15,24,562 for electricity dues, alleging want of hearing.. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ASSESSMENT PROCEDURE UNDER CLAUSE 6.8 HAD BEEN FULLY COMPLIED WITH BEFORE THE RECOVERY CITATION

Court recorded that compliance was not clear and did not decide the allegation of want of hearing. ¶ 3

NOT DECIDED — MERITS OF THE RECOVERY CITATION OF RS 15,24,562

Writ disposed of without examining the demand on merits. ¶ 4-5